HYPERSTATE TECHNOLOGIES PVT. LTD. EMPLOYMENT AGREEMENT

Dated this the 11 day of January, 20 25

Hyperstate Technologies Pvt. Ltd,

("COMPANY")

AND

_____

("EMPLOYEE")

PREPARED BY:

NAPPINAI & CO., ADVOCATES ©

No. 111, New Bake House No.12.

Maharashtra Chamber of Commerce Lane

Fort, Mumbai 400 023

(O) 2202 1250; (F) 6635 2604

nappinai@nappinai.com;

DATE:

NAME

ADDRESS

PAN NO :

Dear _____

Hyperstate Technologies Pvt. Ltd. (“Company”) is pleased to offer you the Full Time position of Software development Engineer (position) effective from 1/02/25 (date).

You are expected to perform, to the best of your ability, all the duties inherent in your position and such additional duties as the Company may call upon you to perform, from time to time by not, directly or indirectly, engaging or associating yourself with, being connected with, concerned, employed or engaged in any other business or activities or any other post or work part time or pursuing any course of study whatsoever, without the prior permission of the Company.

Your specific duties are set out in Schedule I hereto:

The terms and conditions of your employment are as under:

I. Conditions of Employment:

1. Your employment is subject to a SIX (6) month probationary period. This period of time allows you and the Company to assess the suitability and compatibility of working together. If the Company decides to discontinue your employment within this probationary period, you will be entitled to reasonable notice of 15 days. The company may extend the probationary period as per its discretion by another 3 months.

2. The compensation for this position will be INR Highlighted in JD annually, gross of applicable taxes. Your performance and compensation will be reviewed annually. Detailed in JD Please Refer To The attached JD-Schedule 1. Refer To Section

3. Your compensation will be paid on a monthly basis on the 10th of every month via a direct bank transfer into a bank account, the details of which have to be provided by you to the Company through a cancelled cheque linked to the relevant account.

4. You will be entitled to receive 14 paid days of vacation, in addition to 7 days of paid sick leave annually. Your vacation will be prorated in the first year to your start date. The Company shall notify a list of holidays at the start of every calendar year.

5. If you absent yourself without leave or remain absent beyond the period of leave originally approved or subsequently extended, you shall be considered as having voluntarily terminated your employment without giving any notice unless you:

a. Return to work within 8 days from the commencement of such absence; and

b. Give an explanation to the Company in writing regarding such extended and unauthorized period of absence, which in any event shall not exceed in total 5 days.

6. You will be employed at the Pune offices of the Company. During the course of your employment, you will report directly to Head-Products |Shubham Chauhan and will be expected to carry out the duties assigned to you in a competent and efficient fashion. *Your reporting structure may be changed as per the requirements of the compa

7. The Company may transfer / depute you to an affiliate / sister / subsidiary entity with written notice of 1 month. During such transfer / deputation, you acknowledge that you shall remain bound by the terms and conditions under this Agreement and any policies framed by the Company in addition to any policy framed by such affiliate / sister / subsidiary entity.

8. The normal working days are Monday through Saturday. The normal working hours of the Company are from 9:30 Am to 19:30 Pm. You will be expected to work for such number of hours as is required for the proper and efficient discharge of your duties to the Company.

9. The Company shall be entitled to make policies from time to time pertaining to matters such as paid leave entitlement, maternity leave, benefits, working hours, transfer policies, etc., and may alter the same from time to time at its sole discretion. All such policy decisions of the Company shall be deemed to be part of the terms of your employment and shall be binding on you. The terms of such policy shall override the terms of this Agreement to the extent of any conflict between the two.

10. Any and all information / data that you are exposed to during the course of your employment is to be treated as Confidential and is to be utilized only as authorized, for the business of the Company. Such information shall not be removed from the Company premises or shared with third parties without prior permission from the Company in writing. The obligation to maintain confidentiality of Company information / data will survive the expiration and / or termination of this Agreement and / or the term of your employment with the Company.

II. Employee Covenants

1. You agree and acknowledge that in order to assure that the Company will retain its value as a going concern, it is necessary that you undertake not to utilize your relationships with customers and suppliers, save and except for the benefit of the Company.

2. You may occupy a position of trust and confidence with the Company during your employment and you may acquire an intimate knowledge of proprietary and confidential information concerning the Company and its business. The data, details, information, plans including business plans and such or other information, which are disclosed to you or which you become privy to as part of your employment with the Company ("Trade Secrets" and "Confidential Information"), are proprietary to the Company and has special, unique and extraordinary value to the Company, and the Company would be irreparably damaged if you were to divulge the Company's trade secrets or confidential information to any person or entity outside the Company and / or who has not been authorized by the Company in writing to receive such trade secrets, confidential information or data or otherwise act in violation of the terms and conditions contained herein. You shall not, at any time during the term of your employment with the Company and thereafter (including following employee's termination of employment for any reason), disclose, use, transfer or sell, except in the course of employment with, or providing other service to, the Company, any confidential or proprietary information of the Company and its subsidiaries. You shall keep confidential all the information and material provided to you by the Company or by its clients concerning their affairs, in order to enable the Company to perform the service. Your obligation to keep such information confidential shall survive on termination or cancellation of this appointment.

3. You further acknowledge that you shall not share, disseminate, copy, transfer, host, upload or otherwise deal with the confidential information and any proprietary information of the Company without the express written permission of the Company.

4. You acknowledge that all inventions, innovations, discoveries, improvements, developments, methods, know-how, designs, analyses, drawings, reports and all similar or related information (whether or not patentable) which (i) relate to the then current business or any anticipated business of the Company, the Company's research and

development or the Company's existing or future services or products and (ii) are conceived, developed or made by you during and in the scope of his employment by the Company ("Work Product") belong to the Company. You shall promptly disclose such Work Product to the Company and perform all actions reasonably requested by the Company (whether during or after his period of employment with the Company) to establish and confirm such ownership (including the execution of assignments, consents, powers of attorney and other instruments).

5. You acknowledge that all work done and / or generated during the course of your employment, records and documents containing confidential or proprietary information of the Company or its subsidiaries prepared by you or coming into your possession by virtue of your employment by the Company are and will remain the property of the Company and its respective subsidiaries. Upon termination of your employment with the Company, you shall immediately return to the Company all such items and all copies of such items, in your possession and certify in writing that you have not retained and / or do not have in your possession or custody (which includes the possession or custody of persons associated with you or deriving such possession or custody through you). The Company shall be entitled to initiate appropriate legal action against you and persons claiming through you, in the event of a breach or violation of your above representation.

6. You shall not, directly or indirectly, or through any third party, solicit business from any customer of the Company for a period of one year after the date of termination of your employment with the Company. You shall not divulge the Company's trade secrets and / or confidential information during your employment and for a minimum period of 5 years thereafter to any third part or to any person or entity, who has not been authorized by the Company in writing to receive such trade secrets, confidential information or data.

7. You are prohibited from engaging in any activity that interferes with your performance or responsibilities to the Company or is otherwise in conflict with or prejudicial to the Company. Our policies prohibit any employee from accepting simultaneous employment with any other Company.

8. You shall not, at any time during the term of your employment with the Company and thereafter, make statements or representations, or otherwise communicate, directly or indirectly, in writing, orally or otherwise, or take any action which may, directly or indirectly, disparage or be damaging to the Company or any of its subsidiaries or affiliates or their respective officers, directors, employees, advisors, businesses or reputations. Notwithstanding the foregoing, nothing stated herein shall preclude you from making truthful statements or disclosures that are required by applicable law, regulation or legal process.

III. Termination of employment:

1. You may resign from your employment by giving us not less than 3 months' notice in writing. In the event of your resignation by giving an advance notice of less than 3 (three) months or your requesting the Company to relieve you before the completion of the notice period of 3 (three) months, you shall be liable to pay the Company remuneration in lieu of the period for which the notice is not served or the period of notice that remains unserved. However, in any case acceptance of your resignation and relieving shall be subject to completion of all other hand over procedures as stipulated by the Company.

2. The Company is entitled to terminate without cause, your employment by giving an advance written notice of 1 (one) month or payment of remuneration in lieu thereof.

3. The Company reserves the right to terminate your employment at any time without notice, pay in lieu of notice, or severance pay, or other liability in the event it has reasonable grounds to believe you are guilty of misconduct, negligence, causing fundamental breach of the terms of your employment, or causing loss to the Company;

4. Upon cessation of employment, any and all Company property, including but not limited to access credentials, documents, mobile phones, computers, email IDs, and the data stored on them, must be immediately surrendered to the Company.

Please signify your acceptance of this Employment Agreement and the terms and conditions set out herein by signing the original of this letter where indicated below, and return it to the Company on the first date of employment stated above.

We look forward to having you join our team and anticipate a long and fruitful relationship together.

Sincerely,

Signature:

Email: ayushcodez@gmail.com

(_____)

Acceptance:

I accept the terms of employment set forth in this letter:

Director

Name: _____

Date: _____

_____ (Date)

Schedule I

Duties to be performed by _____ in pursuance of his / her role as Software development Engineer _____(Designation) in the Company:

Duties to be performed by Ayush Jaiswal in pursuance of his role as
Sofitware development Engineer in the Company.

JOB DESCRIPTION

This SDE role is tailored for a high-potential future leader. The candidate should be a goal-driven, outcome-focused creative thinker.

CORE RESPONSIBILITIES

- Build and maintain scalable backend architecture for the no-code editor and interactive content platform
- Develop APIs for content management, user collaboration, and multi-channel publishing (web, app, ads, partner platforms)
- Implement data storage solutions for forms, surveys, quizzes, interactive video content etc.
- Create analytics systems to track user engagement and campaign performance
- Manage integrations with ad platforms and third-party services
- Ensure platform security and optimal performance
- Develop APIs for A/B testing capabilities and performance optimization features
- Maintain compliance with relevant data protection regulations given the platform's global client base
- Implement caching strategies and load balancing for handling high-traffic scenarios
- Develop efficient algorithms for processing and serving personalized content

TECHNICAL SKILLS

- Proficiency in backend technologies and frameworks
- Experience with API development and database management
- Knowledge of cloud infrastructure and scalable systems
- Understanding of data security and performance optimization

WORKDAYS

- Mon -Fri 10 am - 7 pm
- Saturday 10 am - 4 pm

CORE RESPONSIBILITIES

- This role offers temporary work-from-home flexibility. You will be expected to return to office-based work when the company's work-from-home policy ends. During the remote work period, you must maintain full availability and productivity as if working from the office.
- Management will communicate the timing of the return to office based on company policy updates.
- You will use your laptop & mobile for communication and Deliveries

COMPENSATION

- **During the probationary period:**
  Your monthly salary for the first 6 months will be **INR 50,000** inclusive of taxes
- **After the probationary period is completed:**
  Your salary will be subject to review upon completion of your probationary period. The company will adjust your annual salary to **INR 6.50 Lakh**.
- **Variable Bonus:**
  You will get a bonus in the range of **INR 50,000 - 100,000** at the end of the year. This bonus will take into consideration both individual performance metrics and the company's market position.
- Any compensation changes will be formally communicated following the performance review process at the end of your probationary period.